

Court No. - 3

Case :- WRIT - C No. - 10933 of 2022

Petitioner :- Ganesh Kumar

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Virendra Kumar

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Heard Sri Virendra Kumar, learned counsel for the petitioner, learned standing counsel for the State-respondents and Sri Narendra Kumar Tiwari, learned counsel for the respondent No.4.

This writ petition has been filed praying for the following relief:

"A. Issue a writ order or direction in the nature of Certiorari quashing the Notice dated 20-01-2022 in respect of Recovery Certificate (R C) bearing Serial No 13382 issued by the Respondent No 3 for the realization of Rs 124837 (Rs one lac twenty four Thousand Eight Hundred Thirty Seven only) from the petitioner.

B. Issue a writ order or direction in the nature of Mandamus commanding the respondent to conduct the inquiry and take appropriate action against of actual offender who has committed the theft enshrined in the Electricity Act."

Sri Narendra Kumar Tiwari, learned counsel for the respondent No.4/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit his/ her objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent No.4, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.4 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 27.5.2022

NLY